

Rental Agreement

This agreement is made between _____ (Tenants) and Harbor Point Properties LLC (Landlord) to cover rental property at 1836 Audubon Circle # _____ Rapid City, SD 57702

The rent to be paid by tenant is \$ _____ /mo throughout the term of this Lease Agreement. Rent is due on the **1st day** of each month. The term of this Lease shall be from _____ .

A security deposit of _____ has been received and acknowledged by the landlord. This deposit cannot be used as rent. You will be notified within (2) weeks after the final walk-through, whether all or a pro-rated portion of your deposit will be returned. Tenant understands that if evicted due to a violation of this rental agreement, all deposit money is forfeited. If you break the lease short of the agreed upon term, you will also automatically forfeit your deposit and be responsible for monthly rent until your home is rerented. Tenant agrees to be responsible for all damages exceeding normal wear and tear. This includes any damage caused by Tenant, Tenant's guests, or Tenant's pet. In signing the rental agreement, you fully agree to this.

Additional Provisions

1. Before taking possession, tenant will pay the entire security deposit, and one month's rent. Subsequent rental payments are due and payable at 105 E North St Rapid City, SD by delivering in person or via US Mail or Venmo is an option for payment. If you pay with cash please request a receipt as proof and timing of your payment. If the rent isn't paid by the 3rd of the month, a **\$35.00** late charge will be assessed, and you will be charged **\$15.00** per day after the 3rd of the month. A charge of **\$75.00** will be assessed for all bad checks.
2. Pets – no pets are allowed in the building. If you are caught with a pet it is grounds for immediate termination of the lease, plus all cleaning and repair charges to restore the property to the condition in which it was leased. Initial her to acknowledge _____.

3. MAINTENANCE AND REPAIRS: Any repairs needed should be discussed with the landlord and appropriate action will be taken. A weblink is provided to submit non-emergency maintenance requests.
- a. It is the responsibility of the Tenant to promptly notify the Landlord of the need for any repair of which the Tenant becomes aware.
 - b. If any required repair is caused by the negligence of the Tenant and/or Tenant's guests, the Tenant will be fully responsible for the cost of the repair and/or replacement that may be needed.
 - c. The Tenant must keep the Leased Premises clean and sanitary at all times and remove all rubbish, garbage, and other waste, in a clean, tidy and sanitary manner.
 - d. The Tenant shall properly use and operate all electrical, cooking and plumbing fixtures and keep them clean and sanitary.
 - e. The Tenant is not permitted to paint, make any alterations, improvements or additions to the Leased Premises without first obtaining the written permission of the Landlord. The Landlord's permission to a particular painting, alteration, improvement, or addition shall not be deemed as consent to future painting, alterations, improvements, or additions.
 - f. The Tenant is responsible for removing snow and ice from stairs, driveway and walkways.
 - g. The Tenant shall maintain the lawn and landscaping by cutting grass and removing weeds.
 - h. The Tenant shall provide his or her own pest control services.
 - i. Landlord wishes to be notified immediately of any dripping faucet, sluggish or clogged drains. Do not use Drano. Do not throw tampax or flushable sanitary products down the toilet or you will be charged for the drain clean out.
 - j. Tenant will keep appliances provided by Landlord in good working order and shall report any malfunction to the Landlord. Any damage sustained due to the neglect or misuse by Tenant will become the full responsibility of the Tenant, either in the appliance repair or replacement.
 - k. Tenant agrees that the appliances are the property of the Landlord and will remain with the Leased Premises at the end of this lease term.

I. Tenant must have written approval before installing any appliance. Landlord accepts no responsibility for the maintenance, repair or upkeep of any appliance supplied by the Tenant. Tenant agrees he/she is responsible for any damage that occurs to the Leased Premises resulting from the addition of any appliance that is supplied by the Tenant.

M. Tenant will notify landlord immediately of an emergency issue by calling/texting. This includes flooding, fire and no heat.

4. Tenant shall permit landlord or his agent to enter the premises at reasonable times for the purpose of inspecting the premises, conducting routine maintenance or making repairs. Landlord will be conducting the property inspections, replacing furnace filters, and will also come fix any repairs that may be called into the Landlord.
 - a. Landlord or Property Manager must give a 24 Hour notice prior to entering the property, except in the event of an emergency.
 5. We keep a key to your rental in case you get locked out. If you lose your key you will be assessed a re-keying fee or if the key pad is required to be reprogramed, there will be a \$75.00 cash at time of service fee.
 6. Landlord has the right to post "for rent" signs at the Leased Premises and show the premises to potential renters with 24 hours advanced notice, during the 60 days prior to the expiration of this Lease Agreement and anytime after termination notice has been given. Landlord has the right to post "for sale" signs at the Leased Premises at any time and has the right to show prospective purchasers the Leased Premises with 24 hours advanced notice to Tenant.
 - a. When Tenant moves out they will be asked to clean house, lock doors and windows.
 - b. If the house is left dirty or repairs to damages are required, we will charge \$100/hr to clean or repair. Also any materials or rubbish left behind will be charged at the same rate to dispose, plus disposal fees. This will be deducted from your deposit and if it exceeds the deposit, it will be invoiced to you and due on receipt.
 - c. Tenant agrees to leave a forwarding address upon move out.
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7. Furnace filters which should be changed out every 90 days.
 8. Other than Tenant, the following people shall be permissible occupants of the Leased Premises during the term of the Lease: Paul Roquejo. No additional parties shall be permitted as occupants without the written permission from the landlord.
 9. No illegal or business activity can take place in the property including drugs, narcotics and under aged consumption of alcohol. The Tenant shall abide by all Federal, State, and Local laws. This Agreement shall be governed, construed and interpreted by, through and under the Laws of the State of South Dakota.
 10. For the safety of our other tenants, you acknowledge by signing this agreement that you are not a convicted felon or a registered sex offender. If not disclosed by the applicant or if a prosecution occurs after the lease has been signed, it is immediate grounds for termination of this lease.
_____ (*initial here*).
 11. No trampolines are permitted.
 12. A walkthrough will be performed on the house before you take possession to note any defects or damage. When vacating the property another walkthrough will need to be completed. We will inspect the home, and make our determination as to whether or not you will get any or a pro-rated portion of your deposit back. A carpet and house cleaning fee will be assessed to clean the rugs and return them to the condition of when you moved into the property.
 13. SMOKING/VAPING: Smoking or vaping is **NOT** permitted inside the premises by Tenant, guests or invitees. Tenant also understand that violation of this policy will result in the Tenant being held responsible for paying all expenses associated with smoke remediation inside the premises, including replacing flooring and repainting the home. This can cost thousands of dollars to repair so don't do it.
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14. Tenant may NOT install a satellite dish on the exterior of the house or a roof of this property. Satellite dish may be installed on a free-standing pole in the yard but tenant will be responsible for removing satellite dish and pole before the end of their lease.

15. PARKING: Tenants shall be entitled to park a maximum of two (2) vehicles in the driveways and parking areas of the premises. One in the garage and one can be parked in the lot. Tenants may not park any vehicles in areas that are not specifically designated for vehicle parking (i.e. vehicles may not be parked on the lawns or other areas outside of the driveways, parking lots or garages of the premises).

Tenants shall not be allowed to park any vehicle with expired or non-existent license plates on the property. Tenants agree that no inoperable vehicles shall be parked on the property. An inoperable vehicle is any vehicle which is not in normal running condition or has remained on the property without movement for five (5) consecutive days. In the event that Landlord determines that a vehicle is inoperable, Landlord shall give written notice to Tenants of that determination by placing it on the vehicle and/or by mailing or otherwise delivering notice to Tenants in care of the property address. If the vehicle has not been removed within five (5) days' notice, then Landlord is authorized to remove the vehicle, at Tenants' expense. In that event, Tenants agree to be responsible for all towing charges, storage charges and related fees. These expenses may also be placed as a lien against the vehicle by either Landlord or Landlord's agent or a towing agency.

16. LIABILITY AND RENTERS INSURANCE: Landlord and landlord's Agents shall not be liable for tenant's personal injury, damages, or loss of tenant's personal property (furniture, jewelry, clothes, etc.) from theft, vandalism, fire, water, rainstorms, smoke, explosions or any other causes whatsoever.

a. Tenants are encouraged to get rental insurance to cover their possessions. If tenants fail to carry and maintain insurance, the tenants will not hold landlord responsible for any cost or any losses incurred on the property.

17. **ENDING THE LEASE:** Tenant must provide at least **30 days** notice that they wish to terminate the lease. If you terminate your lease sooner than the term of the lease, you are responsible for paying the rent and utilities until the home can be leased again. At the end of this Lease Agreement or any renewal thereof, Tenant must vacate and shall immediately and peacefully surrender and return to the Landlord the possession of the Leased Premises in as good condition as when Tenant took possession less normal wear and tear. The Leased Premises shall be cleared out of all occupants, furniture, personal articles, and effects of any kind. Cost to remove the items left behind will be charged back to the tenant or deducted from the security deposit or if it exceeds the deposit it will be invoiced.

18. **UTILITIES & SERVICES:** Tenant is responsible for the following utilities and services: MDU gas and electric. The tenant is required to register the utilities and services in Tenant's name before occupancy. Tenant understands and agrees that essential services are to be maintained and operational at all times.

a. Tenant agrees that Landlord will not be held responsible for the loss of use, or discontinuation or interruption of any utility or extra services beyond the Landlord's control. Any damage created to the property from the discontinuation of services the tenant will be responsible for costs incurred to repair.

b. Tenant shall notify the Landlord of any malfunction of a utility.

19. **DEFAULT.** In the event that Tenant has failed to pay the rent when due or in any other way fails to abide by the terms of this Lease, Tenant shall be considered in default of the Lease. Landlord shall have the option of demanding immediate possession of the Leased Premises and evicting Tenant and shall also be entitled to all other rights including damages above and beyond the security deposit, attorney's fees, and all other costs afforded to Landlord by statute. South Dakota will be the governing law over this lease.

20. **ASSIGNMENT AND SUBLETTING.** Tenant shall not be permitted to assign this Lease Agreement, nor shall Tenant sublet the Leased Premises without the prior written consent of Landlord, which consent may be withheld in Landlord's sole discretion. Landlord shall have the right to transfer and assign

this Lease Agreement to any subsequent owner of the Leased Premises without the consent of Tenant.

21. OPTIONAL TERMINATION UPON SALE. In the event Landlord has entered into a contract for the sale of the Leased Premises, Landlord shall have the option of terminating this Lease Agreement with 45 days advanced notice to Tenant.

SIGNED: _____ DATE: _____

Tenant *NAME 1*

SIGNED: _____ DATE: _____

Tenant *NAME 2*

SIGNED: _____ DATE: _____

Landlord

Of keys received: _____ # of Garage door openers received: _____

Emergency Number:

Kevin Andreson 605-646-5409 of Harbor Point Properties

If mailing Rent payments sent to arrive no later than the 1st day of the month, please include your property address in the memo:

Harbor Point Properties LLC

105 E North St

Rapid City, SD 57702

Before the Lease begins and/or you move in, you must contact the utility companies to activate service. The Tenant may not move in until the utilities are registered in their name. If the Tenant fails to activate any utility services before the Lease begins, the Tenant will be responsible for re-lighting any of the Gas pilots and for all Tenant utility charges. The Tenant is responsible for all utility activation fees. Please take the time to locate and familiarize yourself with the

location of the gas and water shutoff valves and the electric fuses and/or breakers.

UTILITIES CONTACTS

Electric:

Black Hills Power

[888-890-5554](tel:888-890-5554)

Natural Gas:

Montana Dakota Utilities

[\(800\) 638-3278](tel:800-638-3278)

Cable and Internet:

Midco

1301 W Omaha St #106

[\(800\) 888-1300](tel:800-888-1300)

Utilities Enrollment Acknowledgement

I acknowledge that this property does not include utilities. I will switch and provide confirmation that the following utilities will be transferred into my name on the date of or prior to occupying the property. Failure to transfer utilities may delay the ability to access the property.

- Montana Dakota Utilities
- Black Hills Power

SIGNED: _____ DATE: _____

Tenant *NAME 1*

SIGNED: _____ DATE: _____

Tenant *NAME 2*

Initial Inspection Worksheet

Address:

Overview of inspection (add additional spaces such as rooms, deck, storage, etc. in the blank spaces below)

Rooms in rental:	Condition	Notes:
Living room		
Dining room		
Kitchen		
Bathroom		
Bedroom (Master)		
Bedroom 2 (Upstairs)		
Bedroom 3 (Downstairs)		
Bedroom 4 (Downstairs)		
Downstairs Living room		
Bathroom Downstairs		

Detailed check

Bathroom(s)				Kitchen area			
Faucets		Bath		Fridge		Cupboards	
Toilet		Other:		Stove		Other:	
Shower				Sink			
Sink				Countertop			

Other items inspected	Condition	Notes:
Windows		
Carpets		
Flooring		
Heating/AC		
Locks		

Details of existing damages found in rental unit:

Signature of Landlord

Signature of Tenant(s)

Inspection Date